

Privacy in Tort Law

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Signposts

- ▶ What is privacy in tort?
- ▶ Common law basis
- ▶ Balance of human rights

No overarching privacy tort....

Many historical legislative attempts failed.

Why?

‘To draft a law defining a right to privacy which is both specific in its guidance but also flexible enough to apply fairly to each case which would be tested against it could be almost impossible. Many people would not want to seek redress through the law, for reasons of cost and risk. In any case, we are not persuaded that there is significant public support for a privacy law.’

- Culture, Media and Sport Committee ‘Self Regulation of the Press’ Seventh Report of Session 2006– 2007 (HC 375, July 2007) [53].

Kaye v Robertson and Sport Newspapers Ltd [1991] FSR 62 (CA)

- Kaye ('Allo 'Allo) hospitalised with brain injuries due to a billboard falling on his car.
- He was 'interviewed' in hospital when semi-conscious by *Sunday Sport*, which published the interview as a 'scoop'. The story stated Kaye had consented to the interview.
- He had no memory of the interview or photographs.
- Alleging 'invasion of privacy' but sought injunction under: defamation, passing off, malicious falsehood, and trespass to the person.

Image: Gordon Kaye dead: Actor famous for René in 'Allo 'Allo dies aged 75, The Independent, 23 Jan. 2017.



Kaye, cont'd

- ▶ Defamation, passing off, and trespass to the person failed; no right to privacy.
 - ▶ NB: ONLY malicious falsehood succeeded, but we do not cover that tort this year.
- ▶ Claims must fit in existing 'boxes of liability'
 - ▶ (ie, avoiding judicial intervention/activism)
- ▶ 'If ever a person has a right to be let alone by strangers with no public interest to pursue, it must surely be when he lies in hospital recovering from brain surgery and in no more than partial command of his faculties. It is this invasion of his privacy which underlies the [claimant's] complaint. Yet it alone, however gross, does not entitle him to relief in English law. (Bingham LJ at 70)

The Leveson Inquiry 2011-12

(report into media practices)

- ▶ Press was 'self-regulated' under the Press Complaints Commission (PCC, dissolved in 2014); no 'teeth'.
- ▶ Recommendations around respect for privacy, factual accuracy, freedom of expression, and public interest.
- ▶ Backed by sanctions, apologies/corrections, and financial penalties.
- ▶ Created the Independent Press Standards Organisation (IPSO).
- ▶ Effectiveness?
 - ▶ Scheduled 'Leveson 2' has been repeatedly set aside by successive governments

Privacy?

- ▶ ‘...no overarching, all-encompassing cause of action for “invasion of privacy.” (Lord Nicholls, dissenting in *Campbell v MGN*).
- ▶ However....
 - ▶ HRA 1998
 - ▶ Breach of confidence
 - ▶ New(ish) tort of misuse of private information

HRA 1998 Summary

- ▶ Art. 8(1): Everyone has the right to respect for his private and family life, his home and his correspondence.
- ▶ Art. 10(1)-(2): Freedom of expression (more upcoming).
- ▶ s. 12(1): This section applies if a court is considering whether to grant any relief which, if granted, might affect the exercise of the Convention right to freedom of expression.
 - ▶ 12(4) is our relevant provision (more upcoming).
- ▶ HRA Can't create new cause of action for individuals *but* 'if there is a relevant cause of action, the court as a public authority must act compatibly with both parties' Convention rights.' – *Campbell v MGN* [2004] UKHL 27
 - ▶ 'horizontal effect'

Art. 10, HRA 1998

- ▶ (1) Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. This Article shall not prevent States from requiring the licensing of broadcasting, television or cinema enterprises.
- ▶ (2) The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary.

s. 12 HRA 1998

- ▶ (4) The court must have particular regard to the importance of the Convention right to freedom of expression and, where the proceedings relate to material which the respondent claims, or which appears to the court, to be journalistic, literary or artistic material (or to conduct connected with such material), to—
 - (a) the extent to which—
 - (i) the material has, or is about to, become available to the public; or
 - (ii) it is, or would be, in the public interest for the material to be published;
 - (b) any relevant privacy code.

Breach of Confidence Development

1) information exists which has 'the necessary element of confidence about it';

2) the defendant could be said to be obliged to keep the information confidential; and

3) 'unauthorised use' of the information was made by the defendant.

Coco v AN Clark (Engineers) Ltd [1968] (duty required)

'...confidential information comes to the knowledge of a person ... in circumstances where he *has notice or is held to have agreed* that the information is confidential with the effect that it would be just in all the circumstances that he should be precluded from disclosing the information to others. '

Attorney General v Guardian Newspapers Ltd (No 2) [1990]
(expanded how duty could arise)

Douglas, Zeta-Jones and Northern & Shell plc v Hello! Ltd [2005] EWCA Civ 595 (CA)

- ▶ Unpublished location and date of wedding with £1m contract for *OK!* magazine to exclusively publish photos.
- ▶ Freelance photographer sneaked past security, took photos, and sold them to *Hello!*
- ▶ Did not matter the number at reception so long as it was known to be private.
- ▶ Breach of confidence found based on *Coco*, and *Hello!* Should have realised there was an 'obligation of confidence.'
 - ▶ NB: CoA states the HRA did not create a new 'privacy' law
- ▶ Financial damages awarded to Douglas and later to *OK!*

HOME / WEDDINGS

Michael Douglas shares rarely seen wedding photos with Catherine Zeta-Jones

The couple marked their 22nd wedding anniversary

19 NOV 2022



Campbell v MGN [2004] UKHL 22

- ▶ 'Naomi: I am a drug addict' (2001 The Mirror)
- ▶ Claim framed as breach of confidence, as any 'reasonable person' would understand treatment details were confidential (although her drug addition was not as she brought this information forward herself).
- ▶ £3,500 in damages and costs to Campbell
- ▶ If 'a person receives information he knows or ought to know is fairly and reasonably to be regarded as confidential', this creates the tort of 'misuse of private information'. *Campbell*.

Misuse of private information

- ▶ 1) Did the claimant have a 'reasonable expectation of privacy' regarding the information? If so;
- ▶ 2) Does the claimant's interest in maintaining their right to privacy outweigh the defendant's interest in freedom of expression (*i.e.*, the ability to publish the information)?

1. 'Reasonable expectation of privacy'

- ▶ Should be 'obvious', offensive to a 'person of ordinary sensibilities'.
 - ▶ Sexual activities
 - ▶ Password protected photo storage
 - ▶ Evictions
- ▶ May lose reasonable expectation with public knowledge.
- ▶ **NB: unlikely any reasonable expectation for work emails/storage**

2. Balance privacy with freedom of expression

- ▶ Public interest, *e.g.*:
 - ▶ Law enforcement?
 - ▶ Publicly elected officials?

*Duke of Sussex & Lord Watson v News Group
Newspapers (The Sun & News of the World) [settled
2025]*



Img: Reuters/BBC, 2025

Workshop 7 Preview:

-Long running legal battle due to be heard in High Court has settled
‘Prince Harry's team hailed the deal that stopped the trial as a "monumental victory", receiving an undisclosed amount of "substantial damages" and an "unequivocal apology"’
<https://www.bbc.co.uk/news/live/cd9qqj3gvv1t>

- Read and consider: is settlement the best outcome for legal claims for misuse of private information? Why would they apologise [for the first time in any litigation] and settle?

Modern approach: children

- ▶ *Murray v Express* [2008] EWCA 446 (CA)
 - ▶ Rowling (Murray) sought damages and injunction for long lens photos of her 18 mo. old son, David, in public. High Court case fails as there is no 'press-free zone' in 'an area of routine activity which, when conducted in a public place, carries no guarantee of privacy'.
 - ▶ Overturned at CoA, finding children may have a reasonable expectation of privacy even in public, especially if interest is solely based on celebrity status of parents. Variety of relevant factors including nature of activity.
 - ▶ **Best interests of the child should be considered.**

Modern approach: limits

- ▶ is it a 'big deal'? Aka how identifiable or damaging
- ▶ *Mosley v News Group Newspapers Ltd* [2008]: "In public he rejects his father's evil past but secretly he plays Nazi sex games". Posted video of 'sick Nazi orgy,' viewed by 3.5 m people.
 - ▶ no public interest or other justification for the clandestine recording...such behaviour is viewed by some people with distaste and moral disapproval, but in the light of modern rights-based jurisprudence that does not provide any justification for the intrusion on the personal privacy of the claimant. (at [233]).



Modern approach: Limits

(aka, is this not 'invasion of privacy'?)

- ▶ *Wainwright v Home Office* [2003]: 'sloppily performed' strip search on woman (other recourse was available)
- ▶ no 'information' – bodily autonomy is not a cause of action
- ▶ non-celebrity, non-publication.

Contemporary challenges: for thought

- ▶ GDPR (General Data Protection Regulations)
- ▶ AI Act
 - ▶ Smartphones?
 - ▶ Voice recognition?
 - ▶ Locations?
 - ▶ Self-driving vehicles?
 - ▶ Virtual spaces?
 - ▶ AI-generated art and content?
 - ▶ The unknown!

Reluctance to create additional remedy

- ▶ *Kaye: Existing 'boxes' liability*
- ▶ *Douglas: breach of confidence ('obligation of confidence')*
- ▶ *Wainwright: limits to misuse of information*
- ▶ ***Campbell v MGN '... cannot, even if it wanted to, develop a general tort of invasion of privacy.' Lady Hale***

Privacy is....

- ▶ Underpinned by HRA 1998 Arts 8 and 10, via s. 12.
- ▶ Breach of confidence or
- ▶ Misuse of private information
 - ▶ Two-stage test:
 - ▶ 1) Did the claimant have a 'reasonable expectation of privacy' regarding the information? If so;
 - ▶ 2) Does the claimant's interest in maintaining their right to privacy outweigh the defendant's interest in freedom of expression (*i.e.*, the ability to publish the information)?